

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1796

By: Rosino of the Senate

and

6 Lawson and **Hill** of the
7 House

8
9 An Act relating to foster care; defining terms;
10 allowing foster parents to use certain caregivers and
11 arrangements for temporary care of foster children;
12 specifying certain time limit on temporary care;
13 requiring certain notice; requiring foster parents to
14 identify certain formal alternate caregiver;
15 specifying requirements for alternate caregivers;
16 requiring certain screenings and home evaluation for
17 alternate caregivers; authorizing respite care by
18 certain foster families; providing for
19 qualifications; authorizing certain informal care
20 arrangements; requiring application of certain
21 parenting standard; prohibiting use of certain
22 informal caregivers; directing promulgation of rules;
23 providing for codification; and providing an
24 effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-7-117 of Title 10A, unless
there is created a duplication in numbering, reads as follows:

A. As used in this section:

1 1. "Alternate caregiver" means a person, assessed and approved
2 by the Department of Human Services, who for not more than fourteen
3 (14) consecutive days, relieves a foster parent's day-to-day
4 responsibilities by temporarily assuming care and supervision of the
5 child in the custody of the Department. Such term applies only to
6 traditional, contracted, and kinship foster care;

7 2. "Informal care arrangement" means an arrangement a foster
8 parent makes with one or more informal caregivers, who may be
9 friends, neighbors, or relatives, for the foster child's occasional
10 care for a period not to exceed seventy-two (72) hours; and

11 3. "Respite care" means short-term care provided by an approved
12 foster family when foster parents need breaks from day-to-day
13 parenting responsibilities while caring for a child in the custody
14 of the Department.

15 B. 1. Foster parents may use alternate caregivers, use respite
16 care, and make informal care arrangements to temporarily care for
17 their foster children as provided by this section and rules
18 promulgated by the Director of Human Services.

19 2. An individual providing care consecutively for more than
20 seventy-two (72) hours shall be an approved alternate caregiver as
21 provided by subsection C of this section or an approved foster
22 family that provides respite care in accordance with subsection E of
23 this section.
24

1 3. The foster parent shall notify the Department prior to using
2 an alternate caregiver, respite care, or an informal care
3 arrangement.

4 C. 1. The foster parent shall identify at least one alternate
5 caregiver, but no more than two, who can fulfill the foster parent's
6 role for the foster child placed in the foster home in case of
7 family emergencies, or when the family needs an extended break for
8 up to fourteen (14) consecutive days.

9 2. The foster parent may only use an alternate caregiver who
10 has been approved by the Department. An approved alternate
11 caregiver may only provide care for foster families for which the
12 alternate caregiver has been approved by the Department.

13 3. An alternate caregiver shall successfully complete the
14 screening requirements provided by subsection D of this section and
15 shall meet such qualifications for approval as may be prescribed by
16 the Director through rule.

17 D. The alternate caregiver and each adult household member in
18 the alternate caregiver's home shall successfully complete:

19 1. An Oklahoma State Bureau of Investigation name-based
20 criminal history records search;

21 2. A search of Department records including, but not limited
22 to, child welfare records;

23 3. A search of any applicable registries including, but not
24 limited to, the child care Restricted Registry under Section 405.3

1 of Title 10 of the Oklahoma Statutes, the community services worker
2 registry under Section 1025.3 of Title 56 of the Oklahoma Statutes,
3 and the nursing facility nontechnical services worker registry under
4 Section 1-1950.7 of Title 63 of the Oklahoma Statutes;

5 4. An evaluation of the home to assess the location, condition,
6 and capacity to accommodate the foster child; and

7 5. Any other requirements prescribed by the Director through
8 rule.

9 E. 1. Respite care may only be provided by a foster family
10 approved by the Department.

11 2. A foster family is not limited to providing respite care to
12 only one foster family.

13 3. To be approved to provide respite care, a foster family
14 shall meet such qualifications as may be prescribed by the Director
15 through rule.

16 F. 1. Foster parents may make informal care arrangements with
17 informal caregivers for the foster child's occasional care in
18 accordance with this subsection and rules promulgated by the
19 Director.

20 2. Foster parents shall apply the reasonable and prudent parent
21 standard when selecting an informal caregiver to care for the foster
22 child and shall ensure he or she possesses the maturity and skills
23 to address the child's needs.

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1 3. The foster parent shall not use an informal caregiver who
2 the Department of Human Services has determined is unsafe.

3 G. The Director shall promulgate rules as necessary to
4 implement the provisions of this section.

5 SECTION 2. This act shall become effective November 1, 2026.

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7 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
8 OVERSIGHT, dated 04/13/2026 - DO PASS, As Coauthored.

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